



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8999 (EXTENSION)
ORIGINAL January 6, 1983

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8999 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

NOV 15 1994

Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Dist: FHWA FRA USCG FAA

EXEMPTION HOLDER

APPLICATION DATE

Scott Aviation Div. of Figgie International, Inc.
Lancaster, NY

October 20, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.

- Expired - Not Active
Application Withdrawn By Scott
6/11/96



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Expired

DOT-E 8999

1. Scott Aviation Division of Figgie International, Inc., Lancaster, New York, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of an oxygen generator for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of emergency oxygen generators without marking, labeling, shipping papers or specification packaging, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on an application dated February 2, 1983, from Scott Aviation Division of Figgie International, Inc., submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Emergency oxygen generator identified as an EMERGENCY ESCAPE BREATHING DEVICE, classed as an oxidizer.

4. PROPER SHIPPING NAME (49 CFR 172.101). Oxidizer, n.o.s.

5. REGULATION AFFECTED. 49 CFR Part 172 Subpart C; Subpart D; Subpart E; 173.154; 175.3; 175.85.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel, passenger-carrying aircraft, cargo-only aircraft.

7. SAFETY CONTROL MEASURES. Packaging prescribed is as described in the application for exemption, consisting of two steel cylinders in a plastic housing over packed in a plastic case.

8. SPECIAL PROVISIONS.

a. The requirements of 49 CFR Part 107 Appendix B are waived except the plastic carrying case must be plainly and conspicuously marked "DOT-E 8999."

b. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

c. Packages transported under this exemption may be carried in the passenger compartment of an aircraft.

d. No person may cause any emergency oxygen generator to function during transportation in an aircraft.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.

10. EXPIRATION DATE. April 30, 1985.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

JUN 8 1983

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulations,
Materials Transportation Bureau, Research and Special Programs Administration,
U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions
Branch.

Dist: USCG, FAA, FHWA, FRA